

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 13, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Larson v. Murphy 2025-01485707 Demurrer to Answer	Plaintiff Shawna Larson's Demurrer to Defendant Sean Murphy's Answer to the Second Amended Complaint is OVERRULED, in part, as to the 17th affirmative defense, and SUSTAINED with 20 days leave to amend as to the remaining affirmative defenses. Plaintiff demurs to each affirmative defense on the grounds that they fail to set forth facts sufficient to constitute a defense and are uncertain. (See Code Civ. Proc., §§ 431.20, subds. (a), (b).) Legal Standard "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible. (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc. § 430.20.) A demurrer to an answer raises an inquiry into whether the answer states a defense to the
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	plaintiff's cause of action. (<i>Timberidge Enterprises, Inc. v. City of Santa Rosa</i> (1978) 86 Cal.App.3d 873, 880.) "The answer to a complaint shall contain: [¶] (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. [¶] (2) A statement of any new matter constituting a defense." (Code Civ. Proc. § 431.30(b).) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (<i>State Farm Mut. Auto. Ins. Co. v. Superior Court</i> (1991) 228 Cal.App.3d 721, 725 [citations omitted]; see <i>Walsh v. West Valley Mission Comm. College Dist.</i> (1998) 66 Cal.App.4th 1532, 1546.) "It has long been held that 'if the onus of proof is thrown upon the defendant, the matter to be proved by him is new matter.'" (<i>Harris v. City of Santa Monica</i> (2013) 56 Cal. 4th 203, 239 [citations omitted].) Such "new matter" is also known as "an affirmative defense." (<i>Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.</i> (2007) 153 Cal.App.4th 621, 627.) California applies a liberal notice pleading standard, under which a party need only plead ultimate facts showing the essential elements of a claim or defense – not evidentiary facts or detailed factual narratives. (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 550; <i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 382 ["properly drafted pleadings aver the ultimate facts which constitute the cause of action or defense thereto."].) Even under this liberal pleading standard, affirmative defenses must not be pled as "terse legal conclusions," but "rather . . . as facts 'averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.'" (<i>FPI Development, Inc., supra</i>, 231 Cal.App.3d. at p. 384.) Merits Defendant's Answer asserts the following 17 affirmative defenses: (1) Failure to State a Cause of Action; (2) Estoppel; (3) Failure to Mitigate; (4) Statute of Limitations; (5) Laches; (6) Lack of Damages; (7) Plaintiff's Negligence; (8) Third Party Acts; (9) No Outrageous Conduct; (10) Apportionment of Liability; (11) Conduct of Other Parties; (12) Attorney's Fees Unavailable; (13) Comparative Fault; (14) Punitive Damages Unavailable; (15) No Intent to Injure; (16) Causation; and (17) Additional Affirmative Defenses. Plaintiff asserts no specific argument to support her contention that Defendant's affirmative defenses are
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		uncertain. Therefore, the special demurrer on the grounds of uncertainty is OVERRULED. The 2nd – 5th, 7th, 8th and 10th – 14th affirmative defenses concern new matter but fail to state sufficient facts to constitute a defense. Instead, they only state legal principles and conclusions. For example, the 3rd affirmative defense for Failure to Mitigate merely alleges: “Plaintiff has failed to mitigate its damages, if any, and to the extent of such failure to mitigate, any damages awarded to Plaintiff should be reduced accordingly.” (Answer, p. 2:12-13.) The Answer fails to state facts describing what Plaintiff failed to do, when, or how damages would be reduced. Similarly, the 4th affirmative defense for Statute of Limitations alleges: “The Complaint and each of its causes of action are barred by the provisions of one or more of the Applicable statute of limitations provisions contained within the California Code of Civil Procedure.” (Answer, p. 2:16-18.) However, the Answer fails to identify any applicable statute of limitations or dates showing time bar, which are the two ways a statute of limitations defense may be properly plead. (See Code Civ. Proc., § 458; <i>Hall v. Chamberlain</i> (1948) 31 Cal.2d 673, 680.) The remaining affirmative defenses fail to state sufficient facts for the reasons stated in Plaintiff’s demurrer. The 1st, 6th, 9th, 15th and 16th affirmative defenses are not affirmative defenses. The 1st affirmative defense is a ground for demurrer under Code of Civil Procedure, section 430.10, subdivision (e), not an affirmative defense. Defendant raised this ground in its pending demurrer to the Second Amended Complaint. The 6th, 9th, 15th and 16th affirmative defenses merely deny Plaintiff’s factual allegations. Thus, the demurrer to the 1st – 16th affirmative defenses on the grounds that they fail to state facts to constitute a defense is SUSTAINED with 20 days leave to amend. Plaintiff asserts no specific argument regarding the 17th affirmative defense for Additional Affirmative Defenses. Therefore, the demurrer to the 17th affirmative defense is OVERRULED. Moving party to give notice.
2	Ghadiri v. Adam 2025-01481407 Demurrer to Amended Complaint	Defendants Brent Alexander Adam and Chandel Leigh Adam’s Demurrer to the First Amended Complaint is SUSTAINED with leave to amend. “To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the

		cause of action, i.e., the ‘gravamen’ of the cause of action. The nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (<i>Hensler v. City of Glendale</i> (1994) 8 Cal.4th 1, 22-23.) The complaint in <i>Vera v. REL-BC, LLC</i> (2021) 66 Cal.App.5th 57, 65 based a breach of contract claim on the failure to disclose material facts regarding alleged defects in a residential property sale. Plaintiff bases his claim on the same failure to disclose. (FAC, ¶¶ 28-31.) The court in <i>Vera</i> ruled the gravamen of the plaintiff’s claim was in fraud. (<i>Ibid.</i>) Thus, the gravamen of Plaintiff’s claim is also in fraud. “Within three years: [¶¶] (d) An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338(d).) The FAC alleges the purchase occurred in May 2021. (FAC, ¶ 9.) Plaintiff attached an email correspondence from June 4, 2021 to the FAC between his real estate agent and Defendants’ agent in which Plaintiff’s agent admits Plaintiff called about the allegedly fraudulently concealed defect. Thus, from the face of the FAC, the latest Plaintiff could have discovered the defect was June 4, 2021. Plaintiff filed his complaint on May 8, 2025. Therefore, Plaintiff’s first cause of action is barred by the statute of limitations. Accordingly, the Adams’ demurrer is sustained. Leave to amend is granted as it is not evident from the face of the FAC no breach of contract claim can be asserted.
3	Lee v. Hyundai Motor America 2025-01521906 Demurrer to complaint	Defendant PB/J Automotive Inc. dba Tustin Hyundai’s Demurrer to Plaintiff Sang Jik Lee’s Complaint is CONTINUED to October 12, 2026, at 1:45 p.m. in Department C15 as Defendant’s counsel did not sufficiently meet and confer prior to filing the demurrer. The case management conference is also continued to October 12, 2026, at 1:45 p.m. in Department C-15. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).)

		Counsel for Defendant states she sent Plaintiff's counsel a letter on 12/8/25 setting forth the grounds for demurrer and requesting counsel contact her to further discuss by telephone. (Richards Decl., ¶ 4, Ex. B.) Defendant's counsel did not receive a response and has not been able to meet and confer with Plaintiff regarding the demurrer, and Plaintiff remains unresponsive. (Richards Decl., ¶¶ 5, 9, 11.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
4	People's California, LLC v. Monterey Valley Pride 2024-01448432 Demurrer and MTS	<u>Demurrer</u> Defendant Dell Bailey's Demurrer, joined by Agriculture Business Innovations, LLC, is OVERRULED. Plaintiff is reminded to file a proof of service. Bailey's request for judicial notice is granted. The agreement defines "Claimants" as "Green Tents, LLC ..., Jason DeAngelo ... the individuals listed on the signature page of this Term Sheet who are all investors members of Agriculture Business Innovations, LLC ..., and the investor members of Sustainable Agriculture Solutions, LLC" The agreement also imposes certain obligations on Claimants. "Claimants agree that other than sales and/or transfers to People's, MVP will not sell or otherwise allow the transfer or sale of any People's Strains to any other person or entity at any time whatsoever without the written consent of People's. Claimants also agree to use all reasonable measures to prevent the proliferation of the genetic material of People's Strains to any third party." (RJN Ex. 1, ¶ 4C.) Plaintiff alleges moving Defendants breached this obligation: "Contracting Defendants permitted and authorized the transfer of People's Strains to third parties, including the sale of People's Strains to third parties for considerable profit." (FAC, ¶ 46.)

The clear language of the agreement provides that the investors are included in the definition of "Claimants" under the agreement and that the parties agreed the Claimants would have certain obligations. Plaintiff alleges in his FAC, that Claimants, including Bailey and AGI violated those obligations. Thus, Plaintiff has alleged sufficient facts to constitute a breach of contract claim. Therefore, moving Defendants' demurrer is overruled.

Motion to Strike

Defendant Dell Bailey's Motion to Strike, joined by Agriculture Business Innovations, LLC, is GRANTED.

Bailey's request for judicial notice is granted.

Plaintiff did not oppose striking the punitive damages claim.

The remaining allegations are irrelevant because they are not essential to the statement of Plaintiff's breach of contract claim. The listed allegations generally relate to Bailey's actions to other investors, his knowledge of the cannabis industry, claimed slights against Plaintiff, and Plaintiff's subjective desires regarding the agreement. A breach of contract claim requires "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800, .)

Thus, moving Defendants' motion to strike is granted and the allegations at issue are ordered stricken.

Demurrer by Defendant's Brent Alexander Adam and Chandel Leigh Adam

Defendants Brent Alexander Adam and Chandel Leigh Adam's Demurrer to the First Amended Complaint is SUSTAINED with leave to amend.

"To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the 'gravamen' of the cause of action. The nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code." (*Hensler v. City of Glendale* (1994) 8 Cal.4th 1, 22-23.)

The complaint in *Vera v. REL-BC, LLC* (2021) 66 Cal.App.5th 57, 65 based a breach of contract claim on the failure to

		disclose material facts regarding alleged defects in a residential property sale. Plaintiff bases his claim on the same failure to disclose. (FAC, ¶¶ 28-31.) The court in <i>Vera</i> ruled the gravamen of the plaintiff's claim was in fraud. (<i>Ibid.</i>) Thus, the gravamen of Plaintiff's claim is also in fraud. "Within three years: [¶¶] (d) An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338(d).) The FAC alleges the purchase occurred in May 2021. (FAC, ¶ 9.) Plaintiff attached an email correspondence from June 4, 2021 to the FAC between his real estate agent and Defendants' agent in which Plaintiff's agent admits Plaintiff called about the allegedly fraudulently concealed defect. Thus, from the face of the FAC, the latest Plaintiff could have discovered the defect was June 4, 2021. Plaintiff filed his complaint on May 8, 2025. Therefore, Plaintiff's first cause of action is barred by the statute of limitations. Accordingly, the Adams' demurrer is sustained. Leave to amend is granted as it is not evident from the face of the FAC no breach of contract claim can be asserted.
7	Funding Capital Corp., LLC v. Garfield Langmuir-Logan 2024-01437501 Motion to Amend and Vacate Judgment	Plaintiff Funding Capital Corp, LLC's Motion to Consolidate is CONTINUED to October 12, 2026, at 1:45 p.m. in Department C-15. Plaintiff Funding Capital Corp, LLC ("FCC") seeks to consolidate this matter with seeks to consolidate this action with the related case, <i>Moreno Valley Gateway, LLC v. Funding Capital Corp LLC, et al.</i> (30-2025-01466084) ("MVG Action"), for all purposes. Defendants Garfield Langmuir-Logan and Kerry Logan, and Moreno Valley Gateway, LLC, the plaintiff in the MVG action, ("Opposing Parties") oppose the motion. FCC failed to include the caption for both cases on the face of the motion, contrary to California Rules of Court, rule 3.350(a)(1)(B). FCC also failed to file the notice of motion in the MVG Action, which is presently assigned to Judge Thomas S. McConville in department C28, contrary to rule 3.350(a)(1)(C). FCC is ordered to serve and file an amended notice of motion in this case and the MVG Action that includes the caption for both cases on the face of the motion no later than 7/20/26. No additional filings are allowed.

8	Householder v. Travismathew, LLC 2025-01480069 Motion for Order to Stay Proceedings	Defendant Travismathew, LLC's Motion to Stay Action pending appeal is DENIED. Defendant moves for an order staying the action pending appeal of the Court's Order denying Defendant's Motion to Compel Arbitration. Defendant's request for judicial notice/supplemental request for judicial notice The Court GRANTS Defendant's request for judicial notice. (Evid. Code § 452, subd. (d).) Legal standard "Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).) Senate Bill (SB) 365, enacted in 2023, amended California Code of Civil Procedure section 1294 to no longer mandate an automatic stay during the pendency of an appeal of a motion to compel arbitration. Code of Civil Procedure section 1294 now provides the following: "An aggrieved party may appeal from: (a) An order dismissing or denying a petition to compel arbitration. Notwithstanding Section 916, the perfecting of such an appeal shall not automatically stay any proceedings in the trial court during the pendency of the appeal." (Code Civ. Proc., § 1294, subd. (a).) Defendant contends the parties do not dispute the FAA applies, and the FAA mandates a stay of the action pending the appeal pursuant to <i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736. Whether an automatic stay under the FAA is warranted In its 3/9/26 Order denying Defendant's motion to compel arbitration the Court stated: Defendant moves to compel arbitration pursuant to a Mutual Agreement to Arbitrate Claims (Agreement). The Agreement provides: "This Agreement is covered and enforceable under the terms of the Federal Arbitration Act." (Dolar Decl., ¶ 4, Exh. 1 at 2.) Plaintiff does not dispute the application of the FAA.
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	(ROA 57.) "[T]he procedural provisions of the FAA apply in federal court proceedings related to arbitrations and, by their own terms, do not apply in state court." (<i>Wright v. WellQuest Elk Grove, LLC</i> (2026) 119 Cal.App.5th 267, 279 [citations omitted].) "Nevertheless, 'the FAA's procedural rules may apply if the parties expressly agree they do or if the CAA's procedural rules are preempted.'" (<i>Ibid.</i> [citations omitted].) Conversely, "because the CAA applies by default, the parties need not expressly adopt those provisions." (<i>Id.</i> at p. 283.) The Court does not find the parties' agreement expressly adopts the FAA's procedural provisions and therefore the procedural provisions of the CAA, including section 1294, apply. Accordingly, an automatic stay is not mandated. Whether section 1294 is preempted by the FAA Defendant cites no authority holding section 1294 is preempted by the FAA. Moreover, the "sole question" before the Court in <i>Coinbase v. Bielski</i> (2023) 599 U.S. 736, 738, was "whether a <i>district court</i> must stay its proceedings while the interlocutory appeal on arbitrability is ongoing." (Emphasis added.) In holding a district court must stay its proceedings the Court relied on the <i>Griggs</i> principle (<i>Griggs v. Provident Consumer Discount Co.</i>, (19982) 459 U.S. 56, 58), which again "dictates that the <i>district court</i> must stay its proceedings while the interlocutory appeal on arbitrability is ongoing." (<i>Id.</i> at p. 742 [emphasis added].) <i>Coinbase</i> did not address the issue of whether the FAA preempts section 1294 and explicitly specified its holding related to federal court proceedings. Finally, application of section 1294 does not conflict with the FAA as it does not interfere with Defendant's right to appeal or the right to proceed with arbitration should it succeed on its appeal regardless of whether a stay is granted. The Court's discretion to stay the action Code of Civil Procedure section 1294 gives courts the discretion to grant or deny a stay pending appeal. "[W]hen deciding whether to grant or deny a stay, the court, in its sound discretion, must assess and balance the nature and substantiality of the injustices claimed on either side." (<i>Alpha Media Resort Inv. Cases</i> (2019) 39 Cal.App.5th 1121, 1134 n.10 [citations omitted].) The Legislative history of Senate Bill 365 reflects the Legislature's concerns that arbitration agreements can place "employees at a significant disadvantage due to their relative
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		lack of power and knowledge,” and that an automatic stay allows “powerful corporations [to] delay cases filed against them for typically one to three years.” (California Bill Analysis, S.B. 365 Sen., 7/12/23.) The Legislature further explained the purpose of Senate Bill 365 was to give “courts discretion to allow . . . workers to move their case forward if a company files an appeal, rather than waiting for years while the appeal is heard. SB 365 will level the playing field for . . . workers who deserve to move their case forward when a company or employer violates their rights.” (California Bill Analysis, S.B. 365 Sen., 7/12/23.) The balance of hardships does not favor a stay, particularly as this matter has been pending for over a year and further delay may prejudice Plaintiff’s right to promptly litigate her claims. Defendant contends generally that proceeding with the action would result in high litigation costs and further contends it would be prejudiced as proceeding with the litigation may be construed as Defendant’s waiver of his right to compel arbitration. This argument is without merit as Defendant has already moved to compel arbitration and has appealed the Court’s denial of that motion.
9	Morris Cerullo World Evangelism v. G10 Law 2026-01543337 Motion for Change of Venue	The Motion to Transfer Venue by Defendants G10 Law, Louis A. Galuppo, and Georgia Z. Schneider is GRANTED. This legal malpractice case arises from the attorney Defendants’ handling of an underlying real property lawsuit, Orange County Case No. 21-01227550. Defendants assert that venue in San Diego County is proper because all parties reside in San Diego County and the attorney-client relationship was formed and carried out in that County. Plaintiffs oppose the motion on the grounds that venue is proper in Orange County because the lawsuit is premised on Defendants’ breach of duties related to their contract to perform legal services in the underlying Orange County Superior Court lawsuit related to real property located in Santa Ana. <u>Legal Standard:</u> Code of Civil Procedure § 395(a) states in part, “Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is

	for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. [...] Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." "The plaintiff's theory of the action as set forth in the complaint determines the venue. Because the law favors the right of trial at the defendant's residence, the complaint will be strictly construed against a plaintiff seeking to lay the venue elsewhere." (<i>Gallin v. Superior Court</i> (1991) 230 Cal.App.3d 541, 544, citations omitted.) However, "the county of a defendant's residence is not a preferred place of trial over the county where the contract is entered into or is to be performed." (<i>Gilman v. Nordin</i> (1952) 112 Cal.App.2d 788, 793.) "Section 395 of the Code of Civil Procedure provides that the county in which the contract sued on is made and is to be performed is a proper county for trial of the action. Further, it will be noted that the county where the contract is made is deemed to be the county where it is to be performed, unless there is a special contract in writing to the contrary. No distinction is drawn between an action at law or in equity. Further, where the main relief sought is grounded upon a cause of action based on a contract obligation, the contract or nature of the case controls under the 'main relief' rule." (<i>Diepenbrock v. Auslen</i> (1960) 185 Cal.App.2d 747, 751.) Section 397 states in part, "The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court. (b) When there is reason to believe that an impartial trial cannot be had therein.
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		(c) When the convenience of witnesses and the ends of justice would be promoted by the change.” <u>Application:</u> Although Defendants have performed legal services related to Orange County litigation, Plaintiffs have not shown Defendants “contracted to perform an obligation in a particular county...” Based on the language of the statute, this is a precondition for any of the contract-based venue provisions of section 395. While Defendants generally agreed to represent Plaintiffs, Plaintiffs have not shown the contract specified that work was to be performed in “a particular county,” i.e. Orange County. Moreover, the statute states that generally, the county “where the obligation is incurred is the county where it is to be performed,” and here the parties’ contract was entered or “incurred” in San Diego. Therefore, Plaintiffs have not shown there is a contractual basis for venue in Orange County.
10	State Farm General Insurance Co., v. LG Electronics U.S.A., Inc. 2025-01464236 Motion for Summary Judgment/Adjudication	Defendant LG Electronics U.S.A., Inc.’s motion for Summary Judgment or, in the alternative, Summary Adjudication as to the claims alleged in State Farm General Insurance Company’s Complaint is DENIED without prejudice. The proof of service fails to show the moving papers were served on Plaintiff. (ROA 22.) According to the proof of service, Defendant used a messenger service to serve the moving papers on the Plaintiff. However, the proof of service only shows that the moving papers were provided to a messenger service for service on April 23, 2026. Although a Declaration of Messenger is attached to the proof of service, it is blank and neither dated nor signed by any messenger. Therefore, Defendant has failed to show the moving papers were served on Plaintiff by the messenger service. Moving Defendant to give notice.